THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

An Appeal filed in terms of Section 331 of the Code of Criminal Procedure Act No. 15 of 1979 read with Article 138 of the Constitution of the Democratic Socialist Republic of Sri Lanka.

Democratic Socialist Republic of Sri Lanka

Complainant

Vs

Hewa Pathiranage Piyarathne

Accused

Court of Appeal Case No:
CA/HCC/171/2022
High Court of Hambanthota Case No:
HC 128/2017

AND NOW BETWEEN

Hewa Pathiranage Piyarathne

Accused – Appellant

Vs

Hon. Attorney General,
Attorney General's Department,
Colombo 12.

Complainant - Respondent

Before : **P. Kumararatnam, J.**

Pradeep Hettiarachchi, J.

Counsel : Rikaz Riffard for the Accused – Appellant

Dishna Warnakula, DSG for the state.

Argued on : 18.11.2025

Decided on : 13.02.2026

Pradeep Hettiarachchi, J

Judgment

1. The accused-appellant (hereinafter referred to as the appellant) was indicted before the High Court of Hambantota for committing grave sexual abuse on a girl under sixteen years of age, offences punishable under Section 365B(2)(b) of the Penal Code, as amended by Act No. 22 of 1995 and Act No. 29 of 1998.

2. The trial commenced before the learned High Court Judge of Hambantota, and at the conclusion of the trial, the appellant was found guilty of the charge and accordingly convicted. The learned trial Judge sentenced the appellant to fifteen years rigorous imprisonment for the charge. Further, the learned trial Judge ordered the appellant to pay a sum of Rs. 1,000,000.00 as compensation to the victim, with a default sentence of two year's simple imprisonment. The appellant was also imposed a fine of Rs 5000.00 carrying a default sentence of one year simple imprisonment.

3. Being aggrieved by the said conviction and sentence, the appellant has preferred the present appeal. As directed by Court, both parties have filed their respective written submissions.

4. Although several grounds were advanced by the appellant in the written submissions, during oral argument, the appellant pursued only three grounds, namely;
    a. The learned trial Judge has failed to consider the material contradictions observable in the prosecution case;
    b. The defence position was not considered by the learned trial Judge adequately; and
    c. The learned trial Judge has erred in law when considering the probability.

5. First, I shall consider whether the learned trial Judge has failed to consider the material contradictions: As evidenced, the statement of PW1 was recorded only after PW2 made a statement to the police implicating the appellant in an act of sexual abuse committed on her sister, namely PW1.

6. In her testimony, PW1 stated unequivocally that the appellant inserted his male organ into her vagina. She further stated that the appellant moved away from her only after PW2 witnessed the incident. It is also significant to note that, according to PW1, at the time of the incident her mother, sister, and brother had gone out to collect firewood. In contrast, PW2 testified that their mother was sleeping in an adjoining room when the appellant was abusing PW1.

7. In this matter, PW2 made two statements to the police on two different occasions. In her first statement dated 17.05.2016, PW2 did not state anything relating to the sexual abuse of PW1. It was only in her subsequent statement that she alleged having witnessed the appellant sexually abusing PW1.

8. It is also noteworthy that the charge against the appellant was that he committed intercrural sex on PW1. However, throughout the trial, both PW1 and PW2 stated that the appellant inserted his male organ into the vagina of PW1, which is wholly inconsistent with the charge set out in the indictment.

9. Moreover, the evidence of the Judicial Medical Officer, particularly the findings recorded in the Medico-Legal Report, does not support the testimony of PW1 and PW2. The Medico-Legal Report clearly records that the vagina was normal and the hymen was intact. Furthermore, the history given by PW1 to the Judicial Medical Officer indicates that only intercrural sex had taken place.

10. These facts manifestly demonstrate the inconsistency in the evidence of PW1 when considered in the light of the medical findings. Unfortunately, these material infirmities appear to have escaped the attention of the learned trial Judge.

11. Furthermore, during the trial, no evidence was adduced to establish the specific charge of intercrural sex against the appellant. Nevertheless, the learned High Court Judge proceeded to convict the appellant on that charge.

12. A perusal of the impugned judgment reveals that the learned trial Judge placed considerable reliance on the history given by PW1 to the Judicial Medical Officer. The learned trial judge, at page 214 and 215 of the brief, came to the conclusion that the evidence of the victim had been corroborated by the short history given by the victim and the observation and the conclusion reached by the doctor.

13. In my view, this approach is patently erroneous in law. Where both PW1 and PW2 testified in a manner inconsistent with the medical findings, and where the history recorded in the Medico-Legal Report itself contradicts their oral testimony, the trial Judge was not entitled to rely on such history to corroborate the evidence given at trial. Whatever is stated by a victim to a Judicial Medical Officer when giving the history of the incident does not constitute corroborative evidence of the victim's testimony. In this regard following authorities would be of much relevance.

14. In ***Fernando vs. Republic of Sri Lanka*** (1979) 2 NLR 313 at 397, 398 at 397 and 398 His Lordship Justice Vithyalingam observed thus:

> *"In our law of evidence corroboration is a term which has a special significance. In the conventional sense as used in our Courts it means other independent evidence which confirms or supports or strengthens the evidence which is required to be corroborated."*
>
> *"The corroborative facts and evidence must, however, proceed from someone other than the witness to be corroborated. This means that his previous statements, even when admissible, cannot be used to corroborate him, such as proof of a complaint in a sexual case or a previous act of identification is not corroborative of the evidence of the witness, even though by showing consistency it can to some extent strengthen his*

credibility." Vide Law of Evidence by E.R.S.R Coomaraswamy Vol. 2 (book 2) page 627.

15. In ***King vs. Atukorale - 50 NLR 256*** Court of Criminal Appeal held:

"Where an accused is charged with rape, corroboration of the story of the prosecutrix must come from some independent quarter and not from the prosecutrix herself. A complaint made by the prosecutrix to the Police in which she implicated the accused cannot be regarded as corroboration of her evidence."

It is further observed at page 257 as follows:

The corroboration which should be looked for in cases of this kind is some independent testimony which affects the accused by connecting or tending to connect him with the crime, and it is settled law that although the particulars of a complaint made by a prosecutrix shortly after the alleged offence may be given in evidence against the prisoner " as evidence of the consistency of her conduct with her evidence given at the trial ", such complaint " cannot be regarded as corroboration in the proper sense in which that word is understood in cases of this kind, and it is a mis-direction to refer to it as such ". Rex v. Lillyman [1][(1896)2 Q.B.167.]; Rex v. Coulthread [2][24 Cr. A. R. 44.]. As was pointed out in Rex v. Evans [3][18 Cr. A. R. 123.], such evidence is not corroboration because it lacks the essential quality of coming from an independent quarter.

16. In the present case, the trial Judge has misdirected himself when taking into account the history given by PW1 to the JMO as corroborative evidence. Hence, it is unsafe to allow the conviction stand.

17. In this connection, the following passage from *Glanville Williams, Proof of Guilt* (3rd Edition), at pages 158–159, is also of considerable assistance. –

"On a charge of rape and, similar offences it is the practice to instruct the jury that it is unsafe to convict on the uncorroborated evidence of the alleged victim. The rule applies to a charge of indecent assault, or any sexual offence, including an unnatural offence between males. There is a sound reason for it, because these cases are particularly subject to the danger of deliberately false charges, resulting from sexual

neurosis, phantasy, jealousy, spite or simply a girl's refusal to admit that she consented to an act of which she is now ashamed.

18. Furthermore, the precautions and degree of care that must be exercised when relying on the evidence of child victims have been clearly articulated in the following authorities.

In ***Ranjeet Kumar Ram v. State of Bihar [2015] SCC Online SC 500*** the court held that:

"Evidence of the child witness and its credibility would depend upon the circumstances of each case. Only precaution which the court has to bear in mind while assessing the evidence of a child witness is that the witness must be a reliable one".

E.R.S.R Coomaraswamy in his "Law of Evidence" Volume 2 Book 2 at page 658 has stated referring to child witness*;*

"There is no requirement in English law, that the sworn evidence of a child witness needs to be corroborated as a matter of law. But the jury should be warned, not to look for corroboration, but of the risks involved in acting on the sole evidence of young girls and boys, though they may do so if convinced of the truth of such evidence…….This requirement is based on the susceptibility of children to the influence of others and to the surrender to their imaginations".

At page 659 it states*,*

"As regards the sworn testimony of children, there is no requirement as in England to warn of the risk involved in acting on their sole testimony, though it may desirable to issue such a warning, though the failure to do so will generally not affect the conviction".

19. The Supreme Court of India in ***Suryanarayana vs State Of Karnataka*** Appeal (crl.) 522 of 1999 on 3 January, 2000 held:

The evidence of the child witness cannot be rejected per se, but the court, as a rule of prudence, is required to consider such evidence with close scrutiny and only on being convinced about the quality of the statements and its reliability, base conviction by accepting the statement of the child witness. The witness of PW2 cannot be discarded only on the ground of her being of Teen age. The fact

of being PW2 a child witness would require the court to scrutinise her evidence with care and caution. If she is shown to have stood the test of cross-examination and there is no infirmity in her evidence, the prosecution can rightly claim a conviction based upon her testimony alone. Corroboration of the testimony of a child witness is not a rule but a measure of caution and prudence. Some discrepancies in the statement of a child witness cannot be made the basis for discarding the testimony. Discrepancies in the deposition, if not in material particulars, would lend credence to the testimony of a child witness who, under the normal circumstances, would like to mix up what the witness saw with what he or she is likely to imagine to have seen. While appreciating the evidence of the child witness, the courts are required to rule out the possibility of the child being tutored. In the absence of any allegation regarding tutoring or using the child witness for ulterior purposes of the prosecution, the courts have no option but to rely upon the confidence inspiring testimony of such witness for the purposes of holding the accused guilty or not.

20. In ***Panchhi & Ors. v. State of U.P. [1998 (7) SCC 177]*** the Indian Supreme Court held that the evidence of the child witness must be evaluated more carefully and with greater circumspection because a child is susceptible to be swayed by what others tell him and thus an easy prey to tutoring. The evidence of the child witness must find adequate corroboration before it is relied upon as the rule of corroboration is of practical wisdom than of law.

21. Applying the principles laid down in the aforesaid judicial decisions, I am of the view that it is unsafe to act on the evidence of PW1, as her testimony is inconsistent with the findings of the Judicial Medical Officer and lacks credibility, particularly in light of the belated lodging of the complaint and the surrounding circumstances under which PW1 came to make the complaint.

22. In the instant case medical evidence of Dr. Ariyapala Sisira Senevirathne contradicts the evidence of both PW1 and PW2. I have considered the evidence in this case and am of the opinion that, in view of the observation that I have made above, it is dangerous to act on the testimony of PW1. Accordingly, I shall not proceed to examine the other grounds advanced on behalf of the appellant.

23. For the reasons stated above I hold that the prosecution has not proved the charge against the appellant. I therefore set aside the conviction and the sentence and acquit the appellant of the charges levelled against him. Accordingly, the appeal is allowed.

Judge of the Court of Appeal

P. Kumararatnam,J

I agree,

Judge of the Court of Appeal